

This matter is on calendar for further proceedings on a Petition for Appointment of Successor Guardian of the Person of minor, Aidyn Flammini. The Petition was filed by the minor's aunt and uncle, Barbara and Gary Grewell. The Current Guardian is the maternal grandfather, Charles Flammini.

The Court previously dispensed with notice to the deceased mother and deceased paternal grandmother. A consent has been filed on behalf of the Guardian/maternal grandfather but it was executed by a purported power of attorney. A copy of the power of attorney was not provided to establish authority to sign on behalf of the Guardian/maternal grandfather. The Court notes that a Petitioners have requested that the Court dispense with notice to the father and paternal grandparents, however, insufficient information has been provided to permit the Court to dispense with notice to these parties. The father, minor, and Guardian/maternal grandfather must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). All other parties may be served by mail. Prob. Code § 1511(c).

The Court has reviewed the Court Investigator's report, filed September 5, 2024, which recommends granting the Petition. The Court will inquire whether the child is or may be an Indian child. If Petitioner has reason to know that the child is an Indian child, they must make further inquiry to learn about the child's Indian heritage. Notice has been provided under ICWA. The United States Department of the Interior has responded to the ICWA notice that the identified tribe is not a federally recognized tribe.

The Courts notes that Petitioners have not filed a Consent of Proposed Guardian (Judicial Council Form GC-211). This form must be filed as to each proposed Guardian and Item 1 must be completed.

This matter is continued to **Monday, December 30, 2024, at 8:30 a.m. in Department 42** for further proceedings on the Petition. Petitioner is ordered to file and serve a new Notice of Hearing, along with a copy of the Petition, for the continued hearing date on the parties identified above. In the alternative, if Petitioner cannot serve the parties identified above, the Court will require a declaration explaining in further detail why they cannot be served and the efforts of Petitioner to locate and serve the parties identified, in order to permit the Court to dispense with notice to the parties. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today's calendar.**

GUARDIANSHIP OF KYLE FODEN

Case Number: 24PG-0032509

Disclosure Re: guardianship cases involving Shasta County Health and Human Services Agency-Judge Wood discloses that her step-daughter, Erinn Watts, is the Administrative Branch Director of the Health and Human Services Agency. In that position, Judge Wood's step-daughter does not have any involvement in the investigation, management, prosecution or defense of guardianship cases. However, the Court makes this disclosure of an employment relationship between an investigating agency and the Court's first degree relative as required by California Code of Judicial Ethics.

This matter is on calendar for further proceedings on a Petition for Appointment of Guardian of the Person of minor Kyle Foden. The Petition was filed by non-relative Amanda Smith. There is no temporary guardianship in place. The Court noted several service issues on August 12, 2024 and again on September 23, 2024. The matter was continued both times to give Petitioner time to effect proper service. Nothing has been filed by Petitioner since July 20, 2024. The Petition is **DENIED** without prejudice for lack of notice to the necessary parties. The clerk is directed to close the file and vacate any future court dates. **No appearance is necessary on today's calendar.**

GUARDIANSHIP OF SIRYNA GAITHER AND PEYTON PRESTA

Case Number: CVPG21-0031368

Disclosure Re: guardianship cases involving Shasta County Health and Human Services Agency-Judge Wood discloses that her step-daughter, Erinn Watts, is the Administrative Branch Director of the Health and Human Services Agency. In that position, Judge Wood's step-daughter does not have any involvement in the investigation, management, prosecution or defense of guardianship cases. However, the Court makes this disclosure of an employment relationship between an investigating agency and the Court's first degree relative as required by California Code of Judicial Ethics.

This matter is on calendar for further proceedings on a Petition for Termination of Guardianship and Petition for Visitation both filed by the mother, Kaitlyn Amerine. The Guardians are paternal grandparents Jennifer and Mike Presta. This Court notes that this matter has been stayed since April 8, 2024, however, the stay is now lifted.

The Petition for Termination has been properly noticed. The Petition for Visitation has not as there is no proof of service on Guardian Jennifer Presta.

Petitioner has filed a declaration dated October 29, 2024 that attaches the Court's Ruling from confidential cases that were heard by the Honorable Gary Gibson, that document is stricken as it is confidential. The Clerk is ordered to remove it from the file and return it to Petitioner's counsel..

An appearance is necessary on today's calendar to discuss both Petitions.

GUARDIANSHIP OF GUNNER GILLIAM

Case Number: CVPG16-0028762

Disclosure Re: guardianship cases involving Shasta County Health and Human Services Agency-Judge Wood discloses that her step-daughter, Erinn Watts, is the Administrative Branch Director of the Health and Human Services Agency. In that position, Judge Wood's step-daughter does not have any involvement in the investigation, management, prosecution or defense of guardianship cases. However, the Court makes this disclosure of an employment relationship between an investigating agency and the Court's first degree relative as required by California Code of Judicial Ethics.